

Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural purposes) Rules, 2018

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State of Andhra Pradesh - Act

Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural purposes) Rules, 2018

ANDHRA PRADESH

India

Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural purposes) Rules, 2018

Rule

ANDHRA-PRADESH-AGRICULTURAL-LAND-CONVERSION-FOR-NON-AGRICULTURAL-PURPOSES-RULES-2018
of 2018

Published on 19 February 2018

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Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural purposes) Rules, 2018

Published vide Notification No. G.O.Ms.No. 98, dated 19.2.2018

G.O.Ms.No. 98. - In exercise of the powers conferred by sub-section (1) of Section -14 of the Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural Purposes) Act, 2006 (A.P. Act No. 3 of 2006) as subsequently amended and in supersession of the Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural Purposes) Rules, 2006, the Government hereby make the following rules, namely:

1.

Short title.

- These rules may be called the Andhra Pradesh Agricultural Land (Conversion for Non-Agricultural purposes) Rules, 2018.

2.

Definition.

- In these rules, unless the context otherwise requires:-

(a)

"Act" means the Andhra Pradesh Agricultural Land (Conversion for Non -Agricultural purposes) Act, 2006 as subsequently amended.

(b)

"Basic value" means the land value entered in the Basic value register notified by Government from time to time and maintained by the Sub- Registrar.

(c)

"Competent authority" means Sub-Collector / Revenue Divisional Officer of the Revenue Division or any other officer authorised by the Government.

3.

Procedure for conversion.

- (i) The Owner of the land, desiring conversion of Agricultural land for Non-Agricultural purposes, shall pay requisite One Time Conversion tax in any Mee-seva centre through online system duly filling all details in Form given in Annexure-A where upon Annexure-A would be transmitted online to the concerned Tahsildar as well as to Competent authority for further changes in the revenue record that the land is converted as non-agricultural land.

(ii)

Notices for payment of deficit One Time Conversion tax, shall be issued by the Competent authority in form at Annexure-'B'.

(iii)

If any person desires to ascertain the basic value, such person shall apply to the Competent Authority for furnishing of such basic value for such Survey No., Area etc., and the competent authority shall furnish such information within three days from the date of receipt of application.

4.

Conversion.

- On payment of requisite One Time Conversion tax, the Land stands converted and can be used for non-agricultural purpose by the declarant.

5.

In case of Lands allotted to APIIC.

- In the case of lands allotted to the Andhra Pradesh Industrial Infrastructure Corporation Limited, the lands stand converted to Non-Agricultural purpose. The Andhra Pradesh Industrial Infrastructure Corporation Limited shall issue Certificate to individual Industrial Units that the lands allotted to them are converted for Non -Agricultural purpose.

6.

Powers of Competent authority / Tahsildar for inspection etc.

- The Competent authority or any other officer authorized by him shall have power to enter upon, inspect, measure the land and do such other act or acts as are necessary for verification of the area applied for conversion and deficit payment of conversion tax under the Act, lands prohibited for conversion and to ascertain about the title of the land after the above procedure duly giving advance notice to the applicant.

7.

Review of use of lands converted for Non-Agricultural purposes.

- The District Collector concerned shall review every three months the use of the lands so converted and check whether converted lands are used for intended purpose and make quarterly report to the Government and the Special Chief Secretary and Chief Commissioner of Land Administration in the form at Annexure 'C'.

8.

Powers of Spl .C.S & CCLA.

- Any aggrieved person can file complaint before the Special Chief Secretary & Chief Commissioner of Land

Administration, who should cause enquiry especially on issues of deceitful conversion of prohibited lands, under payment, non payment of fee etc., and redress the grievance/complaint at the earliest. Such enquiry and corrective measures can be taken by the Special Chief Secretary & Chief Commissioner of Land Administration Suo-motu also to protect the interests of the Government. The Special Chief Secretary & Chief Commissioner of Land Administration shall also direct the Competent authority to file Criminal case against the wrong doer/offender, if situation so warrants. The Special Chief Secretary & Chief Commissioner of Land Administration shall send quarterly reports to the Government on the complaints/grievances received and action taken on them in the form at Annexure 'D'

Annexure-A

Intimation of Payment of One Time Conversion Tax & Declaration by Land Owner.

(See Rule 3(i))

To

The Competent Authority

Division..... District.....

Sir,

Sub:-A.P. Agricultural Land (Conversion for non-agricultural purposes) Act, 2006 (Act 3/2006) as Amended subsequently Village,district - Sy.No.Ext Conversion of Agricultural land to Non-Agricultural Purpose - Regarding.

I.....S/o..... R/oAadhar No..... submit that I am the Pattadar of Agricultural lands in Survey No of Village Mandal District to an extent of Acs.../Cts... I would like to convert Agricultural land specified in the Schedule into Non-Agricultural purpose.

I enclose herewith a copy of receipt bearing No..... dated..... for Rs..... (Rs..... only) paid to the Government @% basic value of the land towards conversion fee.

I hereby declare that the lands mentioned above are neither covered by any litigation/ court cases/encroachment nor these lands are assigned lands/ ULC Surplus land/ Agricultural Ceiling Surplus Land/ Tank bed lands/ Govt. Lands / forest lands / endowment lands and the land applied is as per master plan and such other land use restrictions by local bodies / authorities.

Further I, declare that Conversion of Agricultural Land to Non-Agricultural purpose will not have any effect on title of Lands whatsoever.

I would be liable for penal action as per law for any wrong declaration in Annexure - A.

Yours faithfully()

Schedule

Sl No.

Village, Mandal & District

Sy.No

Total extent (Sy.No.wise conversion sought)

Extent for which permission for conversion

Remarks

1

2

3

4

5

6

Annexure-B

Notice for Deficit Payment of one time Conversion Tax.

(See Rule 3(ii))

Office of the Competent Authority.....

District.....

Notice

Dated

?.....

Sub:-

Ref:- Your declaration dated.

Sri.....S/o..... is hereby informed that as per your declaration referred to above, you have paid One Time Conversion tax of Rs..... But, the basic value of the land as on the date of declaration for conversion is Rs...../ per acre. The total conversion tax works out to Rs..... Hence, there is a deficit conversion tax amounting to Rs.

Therefore, you are directed to remit the deficit amount of Rs..... (Rs..... only) towards conversion tax to Non-Agricultural purpose within fifteen (15) days from the date of receipt of this notice. If, you fail to remit this deficit amount, your land in question will not be treated as converted for non-agricultural purposes.

Competent Authority

To

Sri.....S/o.....

R/o.....

Copy to the Tahsildar(M).... District.....

Annexure-C

Quarterly Report of District Collector on use of Lands Converted for Non-Agricultural Purposes.

(See rule - 7)

Sl.No

Name of the land owner

Details of the land converted forNon-

Agricultural purposesuch as Name of the village,Sy.No., Extent,
etc.,

Intended Purpose for conversion

Present status of land so converted

1

2

3

4

5

(Signature)

District Collector

Annexure-D

Quarterly Report of Spl.C.S & Ccla on Complaints/grievances

(See Rule - 8)

Sl.No

Name of the Complainant

Details of the Complaint/grievance

Action taken on the Complaint/grievance

Any other remarks

1

2

3

4

5

SignatureCCLA & Spl. CS.

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